

Fantasy Angling Leagues Ltd - 17378561

Regulatory Position: Skill-Based Prize Competition

1. Purpose of this note

This note sets why Fantasy Angling Leagues ("FAL") constitutes a skill-based prize competition falling outside the scope of licensable gambling activity under the Gambling Act 2005, and does not require a Gambling Commission operating licence.

2. Summary of the competition

FAL is a season-long competition in which members of the public who fish for carp in the United Kingdom record their own genuine captures through a mobile application and are ranked on the weight of the fish they catch.

- Two seasons run each year: Summer (1 April to 30 September) and Winter (1 October to 31 March).
- Members are placed into one of three divisions according to their declared personal best, so that they compete against anglers of comparable standard.
- A member's score is the total of their best five captures in a summer season, or best three in a winter season.
- Points are awarded on weight, measured to the ounce, according to a published curve. No element of the scoring is randomised.
- Each division winner receives £1,500. The six divisional winners across the year then fish a 48-hour final at a UK venue, with £20,000 awarded to the winner.
- Membership is a fixed recurring subscription giving access to the competition and to the platform. It is not a stake.

3. Key points: why this is not gambling

Section 3 of the Gambling Act 2005 defines gambling as gaming, betting, or participating in a lottery. FAL engages none of the three.

Statutory category	Operator's position
Lottery	Not engaged. Prizes are allocated by measured angling performance over a six-month season, not by chance. The skill requirement is substantial enough to prevent the overwhelming majority of entrants from winning and prevent the overwhelming majority of population entering at all
Gaming	Not engaged. Angling is not a game of chance. It is a physical pursuit in a natural environment requiring equipment, preparation, watercraft and technique.
Betting	Not engaged. Members do not stake on an outcome. They pay a fixed recurring fee for access to a service and compete on their own performance. There is no counterparty, no odds and no stake at risk.

Statutory category	Operator's position
Pool betting	Not engaged. The prize fund is fixed, published in advance, guaranteed by the operator and does not vary with the number of members or with revenue received.

3.1 The competition is not a lottery

A lottery requires that prizes be allocated by a process which relies wholly on chance. FAL allocates prizes by measured performance across a season lasting six months, on the basis of fish the member has personally caught, weighed and evidenced.

The Act treats a skill requirement as reliance on chance only where that requirement cannot reasonably be expected to prevent a significant proportion of participants from winning, or a significant proportion of those who wish to participate from doing so. **Neither limb is met here.**

- Winning a division requires the entrant personally to locate, hook, land, weigh and evidence multiple specimen carp over six months. The overwhelming majority of members will not do so.
- The best-five structure means a single fortunate capture cannot win a season. Sustained performance across months is required.
- Participation requires the entrant to own tackle, hold a valid rod licence, obtain access to fishable water, and physically attend it. These are substantial practical requirements that no payment can substitute for.

3.2 The competition is not gaming

Gaming requires the playing of a game of chance for a prize. Angling is not a game of chance. It is a physical outdoor pursuit conducted in a natural environment, in which outcomes are materially determined by the participant's knowledge, preparation, equipment and technique.

The competition involves no cards, dice, wheels, random number generation or any other randomising mechanism at any stage.

3.3 The competition is not betting

Betting requires a bet on the outcome of a race, competition or event, on the likelihood of something occurring, or on whether something is true. FAL contains no such element.

- Members do not wager on outcomes. They pay a fixed periodic fee for access to a service.
- The fee is the same for every member regardless of their prospects, and does not vary with performance.
- There is no counterparty accepting a bet, no odds, no stake placed at risk on a result, and no possibility of the fee being multiplied or returned.
- Members compete on their own performance. No member's position depends on predicting or staking on the performance of another.

Critically, a member cannot improve their prospects of winning by paying more. There is one membership at one price, conferring one entry. There is no mechanism by which additional payment purchases additional chances.

3.4 The competition is not pool betting

The prize fund is fixed, published in advance, guaranteed by the operator, and funded from the operator's own resources as a promotional and marketing cost.

- Prizes do not vary with the number of members.
- Prizes do not vary with subscription revenue received.
- No proportion of any member's subscription is identified, ring-fenced or represented as forming part of a prize pool.
- The full advertised prize fund is payable whether the competition attracts fifty members or fifty thousand.

The operator will pay the advertised prizes at a loss if participation is low. That commitment is inconsistent with the structure of a betting pool.

3.5 The skill required is substantial and continuous

The following are all determinative of a member's result and all within the member's control:

- Selection of water, and of swim within that water
- Interpretation of weather, barometric pressure, water temperature and season
- Bait choice, preparation and application strategy
- Rig construction and presentation appropriate to the bottom being fished
- Casting accuracy and feature-finding
- Playing and landing fish without loss
- Judgement about when, how often and how long to fish across a six-month campaign
- Accurate weighing, handling and evidencing of captures

Angling is a recognised competitive sport in the United Kingdom with an established match circuit, national and international representative competition, and a long history of results determined by demonstrable skill.

4. Structural safeguards

The competition has been deliberately structured to keep it clearly outside licensable activity:

- **Fixed, guaranteed prize fund independent of participation and revenue**
- **No stake at risk. Membership is a fixed recurring fee for access to a service**
- **No wallet, balance, credit or cash-out facility of any kind**
- **No transfer of value between members**
- **No mechanism to purchase additional entries or improve odds by payment**
- **No randomised element at any point in the competition**
- **Prizes fixed and published in advance of each season**
- **Entry restricted to persons aged 18 or over**
- **All captures subject to evidence requirements and verification, with an audited review and appeals process**
- **UK waters only, with all fish personally caught by the member**